Insanity as a Legal Defense

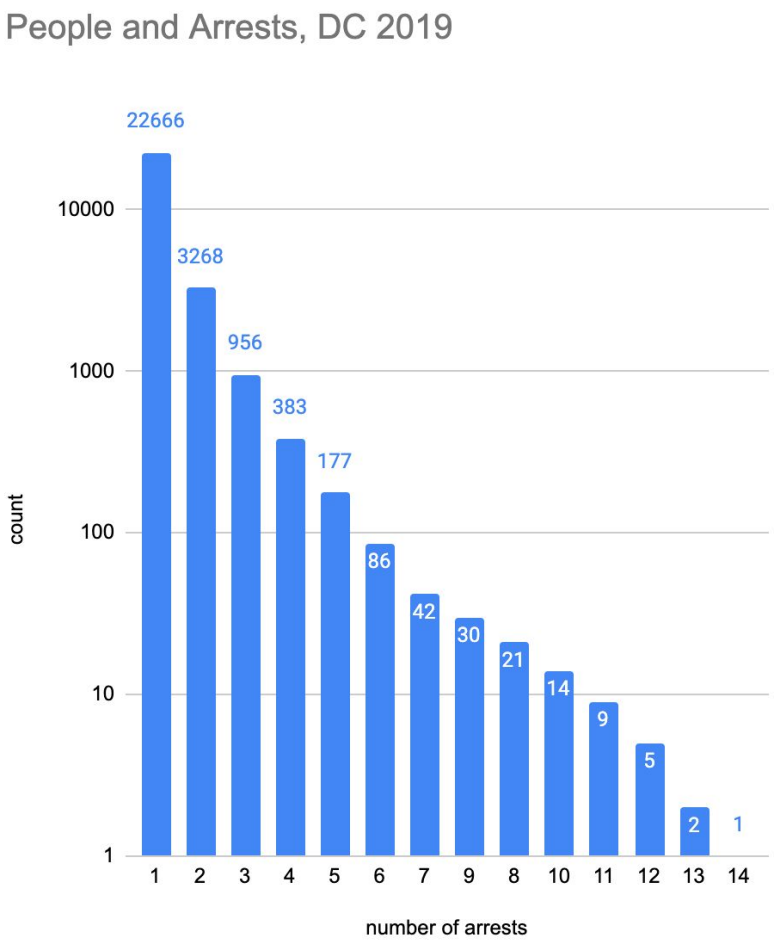
People in Crisis

- Every year, approximately 1,000 people are killed by police officers.
- **People in chronic mental health crisis are 16X more likely to die** from a police encounter than other suspects.
- It is estimated that **20% of those killed are in chronic mental health crisis**.
- It is estimated that **25% of all police shootings involved people in acute crisis**.

People in Crisis

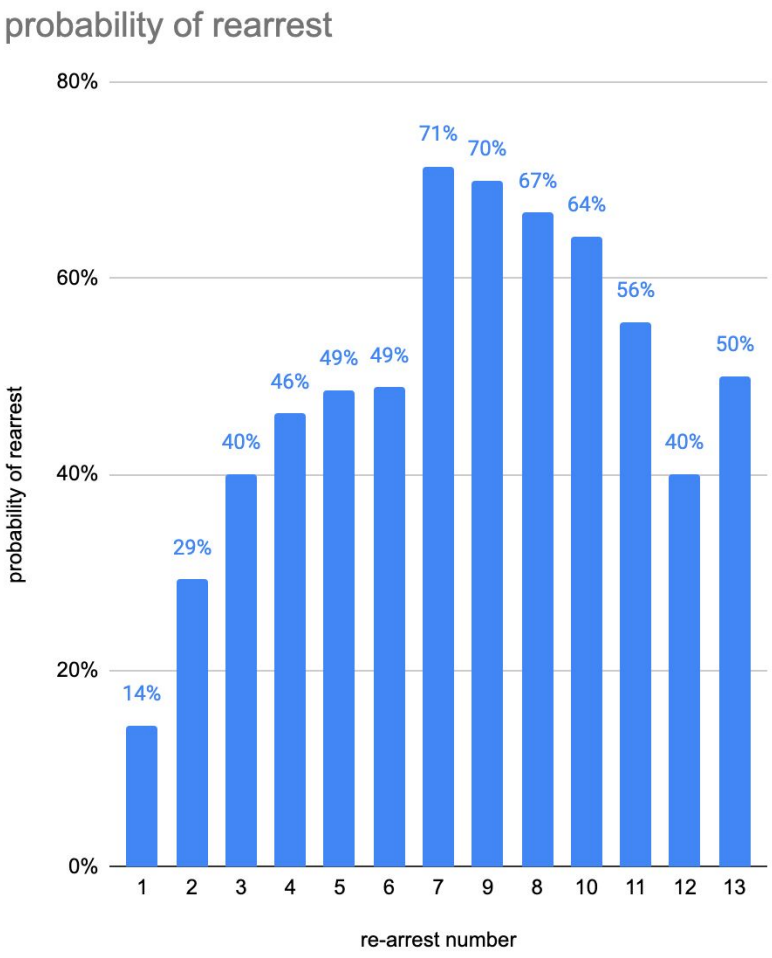
- Percent of people in state and federal prisons who have been diagnosed with a mental illness: 37%
- In locally-run jails: 44%
- Number of people experiencing "serious psychological distress" in jails: 1 in 4
- Portion of people jailed 3+ times within a year who report having a moderate or serious mental illness: 27%
- Lasting effects of incarceration: post-traumatic stress, anxiety, impaired decision-making, and other sequelae

DC Residents in Crisis



- In most jurisdictions there's a power function that describes the number of times a person is re-arrested every year.
- In DC, the average annual likelihood of rearrest within a year is roughly 15%

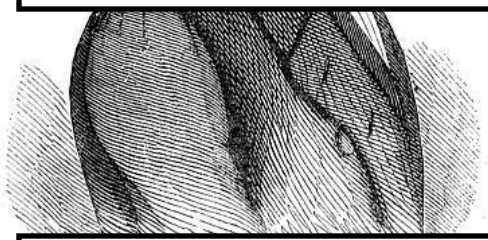
DC Residents in Crisis



- But people who are arrests more than once have much higher likelihood of being arrested again.
- A large majority of the people being arrested more than 3 times a year are behavioral health consumers, but are not receiving adequate services.

Daniel M'Naghten

COGNITIVE/MORAL INCAPACITY: The defendant is excused when, by virtue of a mental disease, they lack the capacity to understand the nature or wrongness of their acts. 24 states.



Model Penal Code

VOLITIONAL: The defendant is excused when a mental disease impairs their capacity to control their behavior. 21 States

Abolition

MENS REA: Mental illness is only a defense insofar as it defeats the mens rea of the offense. 5 states: Alaska, Idaho, Kansas, Montana, and Utah.

Durham

CAUSAL: The defendant is excused when a person would not have committed the crime but for the mental illness. 1 state: New Hampshire.

John W. Hinkley Jr.

1981 2003 2021

Hinkley’s been in St. Elizabeth's since being found not guilty by reason of insanity in 1982. In 1999, Hinckley won the right to furloughs supervised by his parents. In 2018, he was granted unconditional release.

Insanity Defense Reform Act of 1984

In Federal Cases:

- Return to M'Naghten-style test
- Mental illness must be "severe"
- Defense bears the burden of proof
- The burden is increased from "preponderance" to "clear and convincing"
- Restrictions on hospitalization & release

Burdens in the States

- In most states the defendant must prove insanity by a preponderance of the evidence
- A few states require the prosecution to disprove insanity beyond reasonable doubt.
- Only Arizona followed the federal shift to “clear and convincing”.

State v. Green (1982)

The State must prove either that:

The defendant was not suffering from a mental disease or defect at the time of the offense

or

The defendant's knew their conduct was wrongful **and** could conform their conduct to the requirements of the law.

Irresistible Impulse

A supplement to the M’Naghten Rule in 4 states

WANTED
WANTED

Irresistible Impulse?

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